

SENATE BILL 1964

By Yager

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 104, relative to fireworks.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-104-101(8), is amended by designating the existing language as subdivision (A) and adding the following new subdivision:

(B) Notwithstanding subdivision (8)(A), from May 1, 2026, through January 31, 2027, "seasonal retailer" means any person engaged in the business of making retail sales of fireworks within this state from May 20 through May 30, June 10 through July 10, September 1 through September 10, and December 10 through January 3. This subdivision (8)(B) is repealed on February 1, 2027;

SECTION 2. Tennessee Code Annotated, Section 68-104-102(d), is amended by adding the following new subdivision:

(3) Notwithstanding subdivision (d)(1)(E), the fee for a seasonal retailer permit for calendar year 2026 is one hundred fifty dollars (\$150). This subdivision (d)(3) is repealed on February 1, 2027.

SECTION 3. The state fire marshal is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.